CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
JANUARY 27, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:02 p.m. on Wednesday, January 27, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby. Commissioner Rose Tydus arrived at 7:05 p.m. and Vice Mayor Myra L. Taylor was not present.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised of the title change to agenda item 14A1 (first reading ordinance) as follows:

14A1: AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CREATING A NEW SECTION (ORDINANCE 86-8, ARTICLE 7, SECTION 7.5) ENTITLED TREE PROTECTION PROGRAM; SPECIFYING INTENT; DESIGNATING AUTHORITY TO SUPERVISE; ENFORCE, MODIFY AND SUPPLEMENT; PROVIDING DEFINITIONS; ESTABLISHING TREE PLANTING STANDARDS; SPECIFYING TREE PRUNING STANDARDS; PROVIDING TREE REMOVAL STANDARDS; PROHIBITING TREE ABUSE; DESCRIBING PUBLIC PROPERTY PLANTING AND MAINTENANCE STANDARDS; APPLICABILITY TO UTILITY COMPANIES; ESTABLISHING

EMERGENCY PROVISIONS; DESIGNATING ENFORCEMENT; PROVIDING FOR CONFLICT; PROVIDING FOR SEVERABILITY, REPEALER AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

Attorney Geller advised that the only change in the title was specifying the section number.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda item 15-1 from the Consent Agenda (this item would be discussed separately under agenda item 11 – New Items).

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Commissioner Holmes presented Steven Barrett and Leroy Berry with a plaque in honor of their exceptional support during his time of bereavement. He also presented a commendation on behalf of the City Commission to King Leonard and Ronald Griffin for their hard work and dedicated service to the City of Opa-locka.

8. APPROVAL OF MINUTES:

Special Commission Meeting – January 4, 2010
Regular Commission Meeting – January 13, 2010

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Special Commission Meeting of January 4, 2010 and the Regular Commission Meeting of January 13, 2010.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Not present
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner came forward on behalf of District 1 County Commissioner Barbara Jordan and provided information on the Mom and Pop grant currently available.

Commissioner Johnson thanked Commissioner Jordan's Office for their assistance in beautifying State Road 9.

10. PUBLIC PRESENTATION:

1. Alvin Burke
re: welfare of the city

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, came forward and commended the Mayor and the City Clerk's staff for a wonderful State of the City Address. He spoke about expressing his concerns to the Commission and not getting a response or answer to his concerns.

He further voiced his concerns about the homeless population in the city and utilizing the vacant properties to house the homeless during the cold weather.

Mayor Kelley stated that the Commission always makes the assumption that when citizens come before them that their issues are being addressed. He directed the City Manager to work on creating some sort of process whereby the citizens concerns and/or issues are addressed and the Commission is informed via email or written report.

With regards to the homeless in the city, he stated that the Commission is also concerned and with the last cold spell Commissioner Johnson went out and helped the homeless. He stated that he met with Major Evelyn Barrett and other entities regarding the homeless situation and Major Barrett is working through the CET program to provide some resources to this dilemma. Hopefully, before the next meeting the Commission would have an update and perhaps the City Manager can have Major Barrett to provide an update at the next commission meeting.

Commissioner Johnson stated that there are other cities working with the school district and utilize the school cafeterias as a temporary shelter for the homeless. Since there are two schools within the city's limits, she directed the City Manager to follow up with the school board on this initiative as a short term solution until the city's multi-purpose center is complete.

10a. CITIZENS' FORUM:

1. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida came forward and asked that the Commission not pass the resolution dealing with payment to the former City Attorney because she was paid monthly to perform her job. He stated that the State of the

City Address was great and everybody had a great time. He commended the City Clerk and staff for an excellent job on the State of the City Address.

He further spoke about the current city's millage rate which is down from previous years when it was 9.8 mills; however, the city must be made aware of this information.

2. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and objected to the city paying Mrs. Norris-Weeks firm any more money because the firm was paid more than she should have. He stated that he hates the fact that people think when the leave the city that they can leave with a fat check.

He expressed his concerns in terms of billing the city for work that the firm was paid to do. He suggested that the Commission doesn't support the resolution to send a message that there are no free checks in the City of Opa-locka.

Mayor Kelley acknowledged Miami-Dade County Fire Department's presence.

11. ACTION ITEMS (items from consent agenda pull list):

15-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO BURNADETTE NORRIS-WEEKS, P.A. FOR LITIGATION LEGAL SERVICES RENDERED TO THE CITY OF OPA-LOCKA, PAYABLE FROM ACCOUNT NO. 28-514390; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by R.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to pass the above resolution.

Commissioner Johnson expressed her disappointment with the city being billed from 2008 and 2009 when those budgets are closed. She asked that the City Manager allow the Finance Director to come forward.

In terms of the exhibits provided in the commission package as supporting documentation to the resolution, she recalled that for every meeting the Finance Director come forward and advises the Commission that the bills are being paid. She asked, was this billing a part of the accounts to be paid?

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the invoices had not been sent to the city prior to that time.

Commissioner Johnson spoke about the process for payment and having a check request. She asked, had any of the invoices on the agenda as a part of the above resolution been approved by the Finance Department because there is an account number as to where the monies would be paid from. Additionally, she asked for clarification in terms of the

previous statement, if there was an item passed during a previous budget year then the money is lost? Her understanding now based on the Finance Department adding a line item is that the money was held over for this.

Dr. Orji reiterated that the invoices were not sent to the city previously and the have not been reviewed or approved. During the past years, the line item referred to is the normal line item for the City Attorney's legal expenses and is not that money was carried forward from those previous years.

Commissioner Johnson publicly apologized because she championed, not knowing Mrs. Norris-Weeks personally, for the firm to get that amount of money. With the understanding that the firm would come with a dream team that were able to afford a wide variety of services and litigation was one of those services. In researching the amount of money paid over the years, it's a lot; therefore, she cannot support the resolution especially dating back to 2008 and 2009. She assumed that if those services were provided during that time then the firm would have been paid for it; but to now come at the end with an invoice for $37,000.00 then she could not support it.

She continued by preferring that the monies owed should have been negotiated with the City Attorney and not through other methods or being presented in this way.

She directed the City Clerk to pull the DVD of the June 30, 2008 special meeting where it was stated that litigation would be provided by the firm.

Commissioner Holmes asked, who submitted the invoices?

Attorney Geller advised that the invoices were submitted by the former City Attorney through Commissioner Tydus.

In hiring the firm, Commissioner Holmes stated that those invoices should have been submitted while the firm was employed as the City Attorney. If there were outstanding bills to be paid then the City Attorney should have brought that to the Commission's attention prior to submitting her resignation; however, that didn't happen. He stated that bringing forth this resolution at that time was totally out of content.

Being the sponsor of the resolution, Commissioner Tydus stated that Attorney Weeks is not looking for a free ride. Although she appreciates the citizens concerns because she would also be concerned if she had all of the facts. She reiterated that Attorney Weeks is not looking for a free ride nor is she desperate for any money or does she have any reason to request that which is not contractually hers. The Commission does have the responsibility of compensating any professional including Mrs. Weeks under proper contract of which the city has.

She suggested that the Commission request a copy of the DVD where the discussion occurred including charges for her services because it is perfectly clear that litigation services were not included in the $200,000.00.

She continued by asking the City Attorney if the bill submitted by Attorney Weeks legally sufficient?

Attorney Geller replied, yes.

Commissioner Tydus asked, is the bill in proper form for payment?

Attorney Geller replied, as far as I can tell, yes.

Commissioner Tydus asked, do the services appear to have been necessary for the city according to the detailed line by line bill submitted?

Attorney Geller replied, as far as I can tell from looking at the bill, yes.

Commissioner Tydus asked, have you reviewed the tape of the June 2008 meeting?

Attorney Geller replied, yes.

Upon review of the tape, Commissioner Tydus asked, does it appear that litigation was not included in the hiring of the firm?

Although Attorney Geller was not present and based on the review of the tape he said it indicates that was discussed as something that was not to be part of the retainer in so far as he could see on the tape.

Commissioner Tydus asked, are the charges on the bill for litigation services proper?

Attorney Geller stated that the charges appear to be reasonable and it appears from the tape which was of course anyone can view and it's not a legal opinion but from looking at it that's what it seems to say. It says that the litigation was not to be included in the retainer.

Commissioner Tydus asked if Attorney Geller believes the city should pay these bills to avoid any legal challenges.

Attorney Geller advised that it is certainly possible that Mrs. Norris-Weeks could resort to legal remedies if no satisfactory arrangement could be reached.

Commissioner Tydus asked if Attorney Geller had a bill that he submitted to the City of Opa-locka and was not paid for litigation services beyond his normal hire.

Attorney Geller stated that he'd never had a retainer arrangement with the city; however, he was paid for litigation services. But he never had a bill submitted to the City of Opa-locka which the city didn't pay.

Commissioner Tydus asked, were the bills submitted immediately to the city and are there any pending presently?

Attorney Geller replied, some sooner than others. He said he believed there weren't any pending bills for payment.

Commissioner Tydus asked, when was the last bill submitted?

Attorney Geller replied, for services in the month of December.

Upon personally reviewing the tape in questions, Commissioner Tydus indicated that it is very clear by multiple statements and it was addressed multiple times during that particular discussion that the litigation services were not included in the salary and were to be paid separately. Since she'd been with the city, almost 12 years, they've never had this discussion pertaining to payment of any other litigation services by any other attorney including Mr. Geller.

Commissioner Johnson stated that she was the sponsor of Resolution No. 08-7301 appointing the law firm of Burnadette Norris-Weeks, P.A. She directed the City Clerk to provide the Commission with a copy of the above mentioned resolution. The resolution doesn't specify anything which she's heard so far. In addition to that, Exhibit 1, the contract, provides the city to pay $5,000.00 per month, however, she received an email stating that the city paid $16,666.66. Per the contract, the city owed the firm $5,000.00, the contract amount was $200,000.00 per year and $16,666.66 was due. She asked Dr. Orji whether he recalled receiving an email of such.

Dr. Orji agreed that he had received the email in question. He explained that the monthly payment to the City Attorney was $16,666.666 which is simply dividing the $200,000.00 a year into monthly payments. Initially when the bill was sent to his office for that amount, he reviewed it based on the number of days because Mr. Norris-Weeks resigned on the 9th of December, therefore, her service was for only 9 days which was the $5,000.00. However; in conversation with the City Attorney to let her know how much the city would pay, she clarified that she started service with the city in the month of June, therefore, her billing was once month in arrears because the first bill sent was in July. Given the June 8 start date to December 9 when she resigned, there was a one month gap so he recalculated the amount based on the email sent certifying that she did start work on June 8, 2008. Based on that the information and his calculations, Mrs. Norris-Week was paid the one month of $16,666.66.

Commissioner Johnson asked, if what Dr. Orji was saying is correct, then why does the booklet reflect invoices from 2008?

Dr. Orji said he couldn't speak to the bills in the booklet, the City Attorney would have to address that. He addressed the monthly payment based on the resolution approved.

In all due respect, Commissioner Johnson said she didn't see how Attorney Geller could answer all those questions affirmatively because he wasn't here during this time. Whatever the City Attorney answered, it doesn't mean mute to her because he was not

there during that time. Based on the information, she said she would not support the resolution.

Commissioner Tydus asked Attorney Geller if the terms discussed on the tape and the terms agreed to on the tape be considered a legally binding contract.

Attorney Geller stated that if the question was whether the terms are enforceable in court then the answer is while that's up to a judge in his opinion, the terms if stated clearly can be enforced in court whether it's a contract or alternative theory of that is really beyond the scope of the question.

Commissioner Tydus reminded the Commission that the Weeks firm did provide the city with very excellent legal services. The bill provided is in detailed and she had seen the Commission pay legal bills when it had one amount and didn't even include a detail description of anything. Also, if the Commission would note in the bill submitted by Attorney Weeks, thousands of dollars were not even charged for litigation or the cases in litigation and that has yet to be done by any firm to her knowledge. To date, unless the Commission knows something she doesn't know, she'd checked and she doesn't see where they have discussed the conditions and payment to Mr. Geller are. She said the Commission required the Weeks firm to be in the office at least four days a week but there was someone there five days a week and sometimes there were two attorneys represented from her firm. At this time, the city doesn't have that type of service.

She continued by deferring the resolution to another date.

Commissioner Tydus withdrew her seconded and Commissioner Johnson withdrew her motion.

Mayor Kelley stated that he has several questions on the resolution but he didn't have the chance to view the tape; therefore, he suggested that this item is deferred.

The above resolution was deferred per the sponsor.

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CREATING A NEW SECTION (ORDINANCE 86-8, ARTICLE

7, SECTION 7.5) ENTITLED TREE PROTECTION PROGRAM; SPECIFYING INTENT; DESIGNATING AUTHORITY TO SUPERVISE, ENFORCE, MODIFY AND SUPPLEMENT; PROVIDING DEFINITIONS; ESTABLISHING TREE PLANTING STANDARDS; SPECIFYING TREE PRUNING STANDARDS; PROVIDING TREE REMOVAL STANDARDS; PROHIBITING TREE ABUSE; DESCRIBING PUBLIC PROPERTY PLANTING AND MAINTENANCE STANDARDS; APPLICABILITY TO UTILITY COMPANIES; ESTABLISHING EMERGENCY PROVISIONS; DESIGNATING ENFORCEMENT; PROVIDING FOR CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DESIGNATING SIGNATORIES FOR ALL CITY ACCOUNTS ATTACHED HERETO AS EXHIBIT "A"; RESCINDING RESOLUTION 08-7401 AND REVOKING ALL PRIOR AUTHORIZATION GRANTED THEREIN. *Sponsored by C.M.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REJECTING ALL BIDS RECEIVED IN CONNECTION WITH RFP 09-1109 AND FURTHER AUTHORIZING THE CITY MANAGER TO RE-ADVERTISE AND ISSUE A REQUEST FOR PROPOSAL FOR QUALIFIED FIRMS FOR THE DESIGN-BUILD OF THE ROADWAY IMPROVEMENTS OF ALI-BABA AVENUE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, PROVIDING THAT CITY EMPLOYEES DO NOT HAVE TO SIGN IN AT THE SECURITY DESK IN THE LOBBY OF TOWN CENTER WHEN

THE EMPLOYEE PRESENTS THEIR CITY IDENTIFICATION CARD; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO IMMEDIATELY SEEK IN-HOUSE ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO APPLY FOR A FY 2010 URBAN AND COMMUNITY FORESTRY GRANT FROM THE STATE OF FLORIDA DEPARTMENT OF AGRICULTURE AND CONSUMER SERVICES, DIVISION OF FORESTRY, REQUESTING FUNDS IN THE AMOUNT OF TWENTY-FOUR THOUSAND DOLLARS ($24,000.00) FOR THE PURCHASE OF TREES AND TREE REMEDIATION AS PART OF PHASE THREE OF THE PROJECT "CLEANER AND GREENER"; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE ANY AND ALL DOCUMENTS NECESSARY TO OBTAIN THE URBAN AND COMMUNITY FORESTRY GRANT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO APPLY FOR THE TREE CITY USA RECOGNITION AND DESIGNATION WHICH OFFICIALLY RECOGNIZES THAT THE CITY HAS ACHIEVED THE FOUR STANDARDS OF ACHIEVEMENT IN URBAN FORESTRY AS SET FORTH BY THE NATIONAL ARBOR DAY FOUNDATION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolutions were read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the consent agenda resolutions.

The motion passed by a 4-0 vote.

Vice Mayor Taylor	Not present
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson reported that he'd met with staff and he is looking at the possibility of working with the Commission on changes from what the city used to do to what he believes the city should be doing where there's accountability and transparency.

Of concern to Commissioner Johnson was the image of the city especially since the Super Bowl is coming. She said that she spoke to the former City Manager about putting down mulch; however, she noticed that the mulch is being put down on top of the weeds and that should be corrected. She pointed out the area on NW 27th Avenue and NW 151st Street and the water station on NW 135th Street and NW 32nd Avenue where the weeds are overgrown.

She continued by requesting that the trash on the street in front of 1215 Veterans Way (Ali-baba Avenue) which has been there for at least four days is picked up.

In terms of the Civil Rights Supper, she directed the City Manager to make sure that the checks are made payable to the City of Opa-locka.

She further expressed her concern in terms of city events, and the entire Commission not being notified, and that should be a choice for them to decide based on their availability as to whether or not they will attend. But what she'd seen is favoritism and she's really bothered about it but she knows the season they are in. She directed that the City Manager notify the Commission by calendar of all city events.

Commissioner Holmes directed Mr. Patterson to follow up on the flag poles for Town Center which the Commission passed several months ago.

Manager Patterson stated that he noticed when the Commission has concerns, the report is provided at the following commission meeting and he wants a reporting system that he can turn around much quicker than that; therefore, he would be providing updates on a monthly basis on capital projects, but in terms of the concerns, they should be able to turn that around in 24 hours.

Mayor Kelley suggested that the Commission keep in mind and determine whether they would be traveling to Tallahassee and/or Washington D.C. to seek funding. Through the City Clerk, he would be providing some dates for travel of which she would be providing by email.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and reported that the city is up to date on the bills and the city's financial strength continues to grow making them very stable.

Commissioner Johnson requested that Dr. Orji provide a report on the city's Certificate of Deposits along with the interest earned.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Geller briefly reported on two long time matters: the Marland Properties and Kubicki Draper which are both now done, and they are working on the final paperwork. He stated that there are a couple of matters still pending; the flea market matter and one public records case that close to being resolved.

Commissioner Johnson asked for the status of the PBA negotiations.

Attorney Geller advised that there's an upcoming negotiation session and they will try to get that wrapped up as soon as possible.

Commissioner Johnson suggested that the city, during the negotiating session, look at the salaries for the police officers because they are losing the officers to others cites due to the low salary.

Attorney Geller stated that they have prioritized that and the City Manager has begun conversations, and since the session is coming up, then it might be a good idea to have individuals meetings with the Commission prior to the session.

18. CITY CLERK'S REPORT:

Mayor Kelley commended the City Clerk and staff, the City Manager and his staff and everybody involved in the excellent State of the City Address.

Clerk Irby provided an update on the Census 2010 campaign.

Mayor Kelley noticed that some of the signs for the Census are tilted or flipping. He directed the City Manager to have staff make sure those signs are secure and assign a person to check the signs periodically.

Clerk Irby suggested that the Commission consider doing a public service announcement on the city's cable channel for the Census 2010.

Commissioner Johnson stated that two city managers ago, the City Clerk's staff were to get compensated and in speaking with the City Clerk, her staff was never compensated; therefore, she requested that the City Clerk bring back a package for herself and staff. Additionally, she requested that the City Clerk do a comparison the positions with a city comparable to Opa-locka. She said it is important for the city to compensate everyone who is doing a good job and hold them accountable, and although they are unable to give the employees a $500.00 bonus but she has something they are working on that they will be proud of as an employee of Opa-locka.

Commissioner Holmes commented on behalf of what Commissioner Johnson stated by saying that in looking at the salaries for certain departments, the city must take into

consideration the salaries of all departments because there are employees who've been working for the city for years whose salaries are very low.

Commissioner Johnson stated that the idea is to get with the City Manager and address all of the employees.

Mayor Kelley reminded the Commission that the city wants to compensate everyone as best as possible within their means and he is quite sure the City Manager is going to work to do that.

Mayor Kelley presented a proclamation, as a part of the city's grant application, for Arbor Day to Octavian Spanner, Director of Planning and Community Development for the city.

19. MAYOR/COMMISSION REPORT:

Commissioner Holmes welcomed Mr. Patterson to the City of Opa-locka and thanked Christina Gordon for doing such an excellent job in her announcements and advertisements of city events. He spoke about his Food Give-Away which turned out to be a success.

He commended the Mayor for an excellent speech at the State of the City Address on January 25, 2010 and said the band was excellent as well.

Mayor Kelley thanked Commissioner Holmes for his remarks relating to the State of the City Address. In addition to that, the job Commissioner Holmes did with giving out the food was very appreciative.

Commissioner Tydus publicly welcomed Mr. Patterson to the "great" City of Opa-locka and although she didn't have the opportunity to be a part of the selection process she hoped he didn't take that personal. She said she would work cooperatively with the City Manager and will support him as much as possible.

In checking with resources for Miami-Dade County, Commissioner Johnson thanked Mayor Kelley because the city is on its way to getting buses for the seniors.

She reported that on February 20, 2010 Joseph Washington, author from Atlanta, GA would be the keynote speaker for the youth summit and she participated with the friends of the Library in an Art Contest.

She further stated that she attended, along with the team leaders for the Crime Watch in the City Wide Crime Watch, and as a result, she would be working with Florida Memorial University and St. Thomas University to create a mentoring program in the Magnolia North area at no cost to the city. In addition to that, she coordinated the participation of the seniors on the Move to be in the MLK parade.

Commissioner Johnson reported that she had been in contact with FDOT and other individuals for the beautification on State Road 9 and she is working on an employee discount card for vendors and stores in the area.

Mayor Kelley thanked everyone for their support and participation in the State of the City Address. As stated in the State of the City Address, he wants to keep the progress going. There are a lot of things the city has focused on over the last few years as seen in some of the ground breakings so the progress is ongoing. The city must continue to work together and as he stated the other night, it's important that they stay focus. While the Commission may not agree on every issue, they must work together for the betterment of the "great" City of Opa-locka.

He commended the City Clerk's Office, the City Manager's Office, Shawn Williams of Opa-TV and Christine Gordon for a wonderful job in their part of the State of the City Address.

He further mentioned that the city has been trying to get the city's Evaluation and Appraisal Report updated for years which is a part of the comprehensive plan that is essential to the growth of the city. He proudly stated that the city is on its way because the EAR was found sufficient by the South Florida Regional Planning Council.

Mayor Kelley commented on the chart and graph Commissioner Holmes had staff work on in terms of the utility bill and the changes adopted. After finally getting a chance to review the taping, he said it was an excellent presentation by the Finance Department.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 8:25 p.m.

MAYOR

ATTEST:

CITY CLERK